

HOUSE No. 5615

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 29, 2026.

The committee on Ways and Means, to whom was referred the Bill validating a conveyance of land and authorizing the recording of a confirmatory deed in the city of Marlborough (House, No. 5191), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5615).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act validating a conveyance of land and authorizing the recording of a confirmatory deed in the city of Marlborough.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the recording of a confirmatory deed by the commonwealth of a certain parcel of land in the city of Marlborough, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 170 of the acts of 2024 is hereby amended by striking
2 out subsection (b) and inserting in place thereof the following subsection:-

3 (b)(1) The conveyance to be confirmed pursuant to subsection (a) relates to a parcel of
4 land in the city of Marlborough, in Middlesex county, containing 1,000 square feet, more or less,
5 as described in a deed on file with the division of capital asset management and maintenance
6 from the commonwealth acting through its metropolitan district commission to Pierina Monti
7 dated May 22, 1958.

8 (2) Said parcel of land is bounded and described as follows:

Beginning at a stone bound set at the northeasterly corner of the granted premises and in the boundary line between land of the grantee and land now or formerly of Lincoln H. and Ruth I. Breault, as shown on a plan entitled, "Commonwealth of Massachusetts, Metropolitan District Commission, Water Division, Land in Marlboro to be conveyed to Pierina Monti, February 1958, Harold J. Toole, Director of Water Division and Chief Water Supply Engineer".

THENCE the line runs south 4° 25' west by said land of the grantee 111 feet to a stone bound at land of the commonwealth;

THENCE north 5° 35' west by said land of the commonwealth of Massachusetts 104 feet to a point at land now or formerly of Lincoln H. and Ruth I Breault;

THENCE northeasterly by a line curving to the right with a radius of 435 feet by said land of Lincoln H. and Ruth I. Breault 20 feet to the point of beginning.

(3) Said parcel of land containing 1,000 square feet, more or less, and being shown on the plan pursuant to paragraph (2) of subsection (b).

SECTION 2. Said chapter 170 is hereby further amended by adding the following 3 sections:-

SECTION 3. Notwithstanding the absence of a recorded deed or any defect in execution or delivery, the conveyance of the parcel of land, described in section 1, from the commonwealth to Pierina Monti, dated May 22, 1958, is hereby validated, confirmed and ratified and shall be deemed to have been validly made and effective as of May 22, 1958. Said conveyance shall have the same force and effect as if a deed had been properly executed, delivered and recorded at the

time of the original transaction, notwithstanding any defects, irregularities or omissions in the original conveyance or the failure to record the same.

SECTION 4. The Middlesex southern district registry of deeds is hereby authorized and directed to accept for recording the confirmatory deed authorized in section 1, together with any supporting documentation relating to the May 22, 1958 conveyance including a copy of the deed dated May 22, 1958 intending to convey the parcel of land described in subsection (b) of section 1, notwithstanding any requirement of law, rule or regulation that would otherwise prevent such recording. Upon recording the confirmatory deed and supporting documentation, said confirmatory deed shall be deemed to relate back to and shall be effective as of May 22, 1958, and shall serve as conclusive evidence of the commonwealth's conveyance of said parcel to Pierina Monti and her heirs, successors and assigns.

SECTION 5. Upon the recording of the confirmatory deed authorized herein, the title to said parcel shall be deemed to have been vested in Pierina Monti as of May 22, 1958, and to have passed through any successive conveyances or other acts of succession to the current owner of record, free and clear of any claims by the commonwealth arising from the absence of a recorded deed for the 1958 conveyance. This act shall be conclusive evidence of the validity of said conveyance and shall cure any defects in the chain of title arising from the failure to record the original 1958 conveyance.